

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

I am involved in a court case and have WhatsApp messages, emails and screenshots that support my version of events. The other party says that screenshots can be edited and should not be relied upon. The original messages are still on my phone and the emails remain in my account. What legal provisions govern whether these electronic records can be used as evidence?

Job Id. : qwen3-30b/Scenario 7/Bharatiya Sakshya Adhiniyam (BSA), 2023

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NyaySahayak

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APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Electronic/digital records have the same legal effect subject to **section 63** .

Section 62 — Special provisions as to evidence relating to electronic record

Contents may be proved according to **section 63** .

Section 63 — Special provisions relating to electronic records

Central to proving WhatsApp messages, emails and screenshots.

Section 90 — Presumption as to electronic messages

May assist with emails; the presumption concerns correspondence with what was fed for transmission, not the identity of the sender.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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- Sections 61-63 are the core provisions. The fact that the original messages remain on the phone/email account is useful for authentication and comparison. **Section 90** has a limited presumption and does not establish who actually sent an electronic message.

✓ STRENGTHS & RIGHTS

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- Original source records are still available, which is stronger than relying only on detached screenshots.

✗ RISKS & OBLIGATIONS

- 1
- Screenshots can be challenged; authenticity, integrity and **section 63** requirements still matter.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve original accounts/devices, message headers and metadata.

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